

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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PANTON AVILA,

Plaintiff,

SUMMONS

-against-

Index No.
Purchased:

CITY OF NEW YORK, SIMON RASHID, TONIANN
GROTH, FREDERICK MANNEY and JOHN or JANE
DOE 1-10,

Plaintiff Designates Kings County
as the Proper Venue for Trial

Defendants.

The Basis being Where the Injury
Occurred

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
March 23, 2021

/s/ Samuel C. DePaola

SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiff

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TO: CITY OF NEW YORK via CORPORATION COUNSEL
100 Church St, New York, NY 10007

P.O. TONIANN GROTH & SGT. FREDERICK MANNEY
NYPD 90th Precinct
211 Union Ave, Brooklyn, NY 11211

DET. SIMON RASHID
1 Police Plaza Path
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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PANTON AVILA,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No.

CITY OF NEW YORK, SIMON RASHID, TONIANN
GROTH, FREDERICK MANNEY and JOHN or JANE
DOE 1-10,

Defendants.

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Plaintiff, **PANTON AVILA**, by and through the undersigned attorneys, **SIM & DEPAOLA, LLP**, for his complaint against the Defendants, **CITY OF NEW YORK, SIMON RASHID, TONIANN GROTH, FREDERICK MANNEY and JOHN or JANE DOE 1-10**, individually and officially in their capacities as New York City police officers and sergeants, alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief, vis-à-vis 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988 and the laws of the State and City of New York, in addition to the self-executing clauses or implied private causes of action within the Constitution of the State of New York, for the violations of his civil rights and liberties, as enumerated and set forth by the First, Fourth and Fourteenth Amendments to the Constitution of the United States, the Constitution of the State of New York, and the laws of the City and State of New York.

2. The following claims arise from December 9, 2018 incident, in which Defendants, acting under color of state law, unlawfully stopped, questioned, searched and arrested Plaintiff in the vicinity of Humboldt Street and Seigel Street, in the County of Kings, City and State of New York. Plaintiff was removed against his will to a local police precinct before being transported to Kings County Central Booking, where he would be arraigned on false criminal charges. As a result,

Plaintiff was subjected to custodial detention and deprived of his liberty for approximately six (6) days and was caused to suffer various physical, emotional and psychological injuries.

3. Plaintiff was maliciously prosecuted and denied his rights to due process and to a fair trial, until the criminal proceedings were terminated in his favor via the unconditional dismissal of adverse charges on November 20, 2019, pursuant to Section 160.50 of the New York Criminal Procedure Law (“CPL”).

4. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

5. Within 90 of the claims herein, Plaintiff timely serve a notice of claim, upon the City of New York.

6. Over 30 days have elapsed since the filing of this notice, and this matter has not been settled or otherwise disposed of.

7. Plaintiff has complied with municipal defendant’s request for an oral examination, pursuant to Section 50-H of the New York General Municipal Law, or no such request was made within the applicable period.

8. This action and associated claims have been timely commenced within one year and ninety day of the dates from which they arose.

9. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and reasonable attorney’s fees, with all interest accrued, together with such other and further relief, as this Court may deem just and proper.

PARTIES

10. Plaintiff, Mr. Panton Avila (“Mr. Avila”), is Latino or Hispanic male who resides in Kings County, New York.

11. Defendant, City of New York (“City”), is a municipal corporation organized under the laws of the State of New York.

12. At all times relevant hereto, defendant City, acting through the New York City Police Department (“NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers or officials, as well as the individually named NYPD Defendants herein.

13. In addition, at all times here relevant, defendant, City, was responsible for enforcing the rules or regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

14. Defendants, SIMON RASHID (“RASHID”), TONIANN GROTH (“GROTH”), FREDERICK MANNEY (“MANNEY”), were, at all times here relevant, police officers, detectives or sergeants employed by the NYPD and, as such, was acting in the capacities of agents, servants and employees of the Defendant, City of New York. Defendants RASHID, GROTH and MANNEY were, at the times relevant herein, police officers or sergeants, assigned to the New York City police department, located at One Police Plaza Path, New York, New York 10038. Defendants RASHID, GROTH and MANNEY are being sued in their individual and official capacities.

15. At all relevant times, Defendants JOHN or JANE DOE 1-10 were police officers, sergeants, supervisors, policymakers or officials employed by the NYPD, or City of New York. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants JOHN or JANE DOE 1-10, as such knowledge is within the exclusive possession of Defendants.

16. At all relevant times herein, Defendants JOHN or JANE DOE 1-10 were acting as agents, servants and employees of the City of New York, or the NYPD. Defendants JOHN or JANE DOE 1-10 are being sued in their individual and official capacities.

17. At all relevant times herein, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

18. On December 9, 2018, at approximately 1:00 a.m., in the vicinity of Humboldt Street and Seigel Street, Brooklyn, New York, Plaintiff was operating his motor vehicle with his girlfriend in the front passenger seat in obedience of local, state and federal laws, when he was pulled over pursuant to a vehicle stop by Defendants, including RASHID, GROTH and MANNEY.

19. Defendants, including RASHID, GROTH and MANNEY, stopped Mr. Avila's vehicle without any reasonable suspicion or probable cause to believe that he was committing any crime of violation of the law, since Mr. Avila was operating his motor vehicle in full compliance with all laws, rules and regulations, including those set forth within the New York Vehicle & Traffic Law ("VTL").

20. Defendants, including RASHID, GROTH and MANNEY, proceeded to unlawfully question Mr. Avila about illegal activity, despite possessing no valid reason to inquire, since there was a complete absence of any criminal activity or reason to suspect such.

21. Defendants, including RASHID, GROTH and MANNEY, then entered and searched Mr. Avila's motor vehicle by peering underneath the seats and opening and rifling through various compartments and areas, including, but not limited to, the trunk, glove compartment and center console, without consent, reasonable suspicion, probable cause, a judicially authorized warrant or any other lawful justification therefor.

22. Plaintiff verbally objected to the search of his person and property without his consent or other lawful reason by defendants, including RASHID, GROTH and MANNEY.

23. Defendant MANNEY became visibly upset before angrily and derisively responding that he did not need plaintiff's consent to do anything, who defendant MANNEY condescendingly berated as an ignorant "street lawyer," presumably due to Mr. Avila's status as a male Hispanic or Latino.

24. Defendants, including RASHID, GROTH and MANNEY, physically restrained and removed Plaintiff by violently contorting his hands behind his back prior to affixing metal handcuffs to his wrists in an excessively tight fashion, causing plaintiff to suffer substantial physical pain, injury and discomfort to his arms, wrists, hands, back and neck, as well as abrasions and lacerations to both wrists.

25. Plaintiff pleaded with Defendants, including RASHID, GROTH and MANNEY, to loosen the handcuffs numerous times over the course of several hours,

26. Defendants, including RASHID, GROTH and MANNEY, however, ignored or outright refused to loosen the excessively handcuffs.

27. Defendants, including RASHID, GROTH and MANNEY, engaged in the fabrication of evidence to justify the unlawful stop, illegal search and seizure, and wrongful arrest of plaintiff.

28. Defendants, including RASHID, GROTH and MANNEY, then forcibly removed Plaintiff to the local precinct by grabbing his person and shoving into a police transport vehicle.

29. Defendants, including RASHID, GROTH and MANNEY, then proceeded to criminally process Plaintiff, which included fingerprinting, retina scans and a strip-search with attendant cavity inspection.

30. Defendants, including RASHID, GROTH and MANNEY, falsely claimed that plaintiff and his vehicle were pulled over due to excessively tinted windows, pursuant to VTL Section 375 (12-A)(B)(2) and (3) and that the alleged firearm recovered from the vehicle after being observed in plain view, when defendants, including RASHID, GROTH and MANNEY, knew such allegations to be fallacious and made in violation of plaintiff's civil rights.

31. The motor vehicle operated by Mr. Avila did not have excessively tinted windows and Mr. Avila did not engage in any unlawful activity to warrant being pulled over, stopped, searched, seized and arrested by defendants, including RASHID, GROTH and MANNEY.

32. Plaintiff was never in actual or constructive possession of any firearm.

33. If Defendants, including RASHID, GROTH and MANNEY, did recover a firearm from within the motor vehicle, said recovery was pursuant to an illegal search in the absence of reasonable suspicion or probable cause to believe that plaintiff or his girlfriend had committed any crime or violation of the law or that any illicit item or substance was within said motor vehicle.

34. Defendants, including RASHID, GROTH and MANNEY, then subjected Plaintiff to illegal interrogation tactics without informing him of his rights, pursuant to *Miranda v. Arizona*, by threatening him and his girlfriend, who was also arrested, with a protracted criminal prosecution followed by a lengthy term of imprisonment, unless plaintiff complied with Defendants' demands by either providing defendants with information regarding actual criminal activity and criminal

actors or with plaintiff's confession to the fallaciously alleged criminal charge of Criminal Possession of Weapon in the Second Degree.

35. When plaintiff exercised his right to remain silent or to counsel, Defendants, including RASHID, GROTH and MANNEY, retaliated by forwarding said fabricated evidence to prosecutors, so that plaintiff and his girlfriend would be subjected to criminal prosecutions in the absence of probable cause.

36. Defendants, including RASHID, GROTH and MANNEY, proceeded to suppress exculpatory evidence from prosecutors, including photographs and video recordings of the subject motor vehicle that would have completely discredited the version of events and accounts of defendants, including the basis for the stop, search and recovery of the alleged firearm.

37. Defendants, including RASHID, GROTH and MANNEY, based upon said fabricated observations, falsely informed prosecutors that the stop and search of plaintiff and his vehicle were lawfully predicated upon reasonable suspicion or probable cause to believe plaintiff was operating his motor vehicle in violation of the VTL or that the search of plaintiff and his vehicle, as well as the recovery of the alleged firearm, were conducted within the bounds of the constitutions and laws of the United States and the State of New York, when defendants were fully aware that their interactions with plaintiff constituted gross violations of his Constitutional and civil rights.

38. After Plaintiff's arraignment, he was held on bail for several more days, until he was eventually released.

39. Defendants initiated and maintained their baseless criminal prosecution of plaintiff until November 20, 2019, when the Honorable Jane C. Tully, J.S.C., dismissed and sealed all adverse charges against plaintiff after ruling that defendants, including RASHID, GROTH and MANNEY,

searched and seized plaintiff's vehicle and person without probable cause or other legal justification.

40. Defendants, including RASHID, GROTH and MANNEY, arrested and attempted cause a criminal prosecution to be initiated against Plaintiff, because of their desires to use Plaintiff's arrest and criminal prosecution as leverage to obtain information relative to actual crimes or criminals, to incur employment benefits, including overtime compensation, vacation days, and favorable performance reviews and evaluations from supervisors, and to avoid the adverse consequences that would result from their failure to meet NYPD arrest quotas, as well as their desire to conceal the aforementioned egregious violations of proper police procedures and other gross misconduct perpetrated in the furtherance of defendants' violations of plaintiff's civil rights .

41. Defendants, including RASHID, GROTH and MANNEY, engaged in a conspiracy to falsely arrest and maliciously prosecute Plaintiff by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence and observations, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

42. Defendants, including RASHID, GROTH and MANNEY, unjustly and unlawfully targeted plaintiff for arrest and prosecution, due to impermissible considerations, regarding plaintiff's color, race or ethnicity, or defendants' perceptions thereof, as defendants would not have illegally stopped, searched and seized plaintiff if they did not perceive him to be a Hispanic or Latino male.

43. Defendants, RASHID, GROTH and MANNEY, engaged in a conspiracy to falsely arrest and maliciously prosecute Plaintiff by personally conferring with each other regarding the fabrication of the aforementioned non-existent evidence, the suppression of exculpatory evidence,

as well as the manner and means by which said fabrications could be used to deprive Mr. Avila of his civil rights and liberties.

44. Mr. Avila asserts that Defendants, including RASHID, GROTH and MANNEY, illegally approached, stopped, searched, and then falsely arrested him, due solely to their racially or ethnically discriminatory prejudices or biases against Hispanic or Latino males, their intent to use the instant arrest as leverage, so that plaintiff would provide defendants with information regarding other crimes or criminal suspects, their desires to fulfill an unconstitutional and illegal arrest quota, to benefit from increased overtime compensation and retaliate against plaintiff for asserting his right be from unreasonable searches and seizures, to remain silent and to be afforded the assistance of counsel.

45. Mr. Avila further asserts that Defendants, including RASHID, GROTH and MANNEY, acted in such an unlawfully reprehensible manner, due to their unsubstantiated and unreasonable presumption that Mr. Avila would be aware of serious ongoing criminal activity or actively committing a crime himself, solely because of his status as Hispanic or Latino male.

46. Defendants, including RASHID, GROTH and MANNEY, arrested and maliciously prosecuted Plaintiff, because of their impermissibly discriminatory belief that Mr. Avila's status as a Hispanic or Latino male was tantamount to criminal guilt or criminal knowledge.

47. Defendants, including RASHID, GROTH and MANNEY, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations, namely the stop, searches, assaults, batteries, seizure, arrest, and malicious prosecution against plaintiff, even after they were unable to discover any evidence to justify such conduct.

48. Defendants, including RASHID, GROTH and MANNEY, unlawfully stopped, questioned, searched, seized, arrested, and maliciously prosecuted plaintiff, due solely to defendants' perception or consideration of Mr. Avila's ethnicity or national origin.

49. Defendants, including RASHID, GROTH and MANNEY, possessed no valid reason to approach, stop, question, search or arrest plaintiff, which gives rise to the strong inference that such conduct resulted from defendants' unjust motivations or proclivities toward engaging in discriminatory conduct predicated upon national origin, race, or ethnicity.

50. Defendants, including RASHID, GROTH and MANNEY, subjected Mr. Avila to disparate treatment compared to other individuals similarly situated, because defendants did not stop, seize, search, detain, arrest or accuse any white individuals engaged in similar or identical activity to plaintiff when he was illegally searched and seized, namely the operation of a motor vehicle in full compliance with all applicable laws, rules and regulations.

51. Plaintiff asserts that the Defendants, including RASHID, GROTH and MANNEY, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

52. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the

United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

53. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via some incontrovertible form of evidence.

54. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

55. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD’s failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

56. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco’s lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

57. Other articles include: (i) “Testilying’ by Police: A Stubborn Problem.,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*,

November 1, 2011; and (vii) “The Drugs? They Came From the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

58. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

59. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff’s arrest without probable cause.

60. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

61. Defendants’ actions, pursuant to Plaintiff’s underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff’s civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of

constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

62. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

63. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

64. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants, RASHID, GROTH and MANNEY.

65. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

66. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

67. The aforementioned acts of Defendants, including RASHID, GROTH and MANNEY, directly or proximately resulted in the deprivation or violation of Plaintiff's civil rights, as guaranteed and protected by the First, Fourth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

68. As a direct or proximate result of said acts, Plaintiff was caused to suffer the loss of her liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Protected Speech or Activity Retaliation Claim Under
New York State Law

69. The above paragraphs are here incorporated by reference as though fully set forth.

70. Plaintiff engaged in speech and activities that were protected by Article I, Section 8, of the constitution of the State of New York.

71. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiff's constitutionally protected speech or activities.

72. Defendants' retaliatory actions against plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

73. Defendants' retaliatory actions adversely affected plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities or by chilling his desire to further participate or engage in such protected speech or activities.

74. Accordingly, plaintiff's right to engage in protected speech and activities, guaranteed and protected by Article I, Section 8, of the constitution of the State of New York, was violated by defendants.

75. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

76. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 Against Individual Defendants

77. The above paragraphs are here incorporated by reference as though fully set forth.

78. Plaintiff engaged in speech and activities that were protected by the First Amendment to the Constitution of the United States.

79. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiff's constitutionally protected speech or activities.

80. Defendants' retaliatory actions against plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

81. Defendants' retaliatory actions adversely affected plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities, or by chilling his desire to further participate or engage in such protected speech or activities.

82. Accordingly, plaintiff's right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the Constitution of the United States, was violated by defendants.

83. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
Unlawful Search & Seizure Under
New York State Law

84. The above paragraphs are here incorporated by reference as though fully set forth.

85. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

86. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

87. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

88. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

89. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the constitution of the State of New York and Article II, Section 8, of the New York Civil Rights Law.

90. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

91. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Unlawful Search & Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

92. The above paragraphs are here incorporated by reference as though fully set forth.

93. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

94. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

95. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

96. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

97. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the Constitution of the United States.

98. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
New York State Law

99. The above paragraphs are here incorporated by reference as though fully set forth.

100. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

101. Plaintiff was conscious of his confinement.
102. Plaintiff did not consent to his confinement.
103. Plaintiff's arrest and false imprisonment was not otherwise privileged.
104. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
105. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

106. The above paragraphs are here incorporated by reference as though fully set forth.
107. The Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
108. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
109. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
110. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault & Battery Under
New York State Law

111. The above paragraphs are here incorporated by reference as though fully set forth.

112. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful or offensive touching.

113. Defendants engaged in and subjected plaintiff to immediate harmful or offensive touching and battered him without his consent.

114. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

115. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

116. The above paragraphs are here incorporated by reference as though fully set forth.

117. The Defendants violated Plaintiff's rights, under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

118. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent.

119. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

120. The above paragraphs are here incorporated by reference as though fully set forth.

121. Defendants initiated the prosecution against Plaintiff.

122. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

123. Defendants acted with malice, which may be inferred in the absence of probable cause.

124. The prosecution was terminated in Plaintiff's favor, when all adverse charges were unconditionally and outright dismissed, due to the lack of probable cause to believe that plaintiff had committed a crime or that the prosecution would succeed.

125. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

126. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

127. The above paragraphs are here incorporated by reference as though fully set forth.

128. Defendants initiated the prosecution against Plaintiff.

129. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

130. Defendants acted with malice, which may be inferred in the absence of probable cause.

131. The prosecution was terminated in Plaintiff's favor, when all adverse charges were unconditionally dismissed, due to the lack of probable cause to believe that plaintiff had committed a crime or that the prosecution would succeed.

132. Accordingly, Defendants violated Plaintiff's Fourth and Fourteenth Amendment rights.

133. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

134. The above paragraphs are here incorporated by reference as though fully set forth.

135. Defendants arrested, detained and caused a criminal prosecution to be initiated against plaintiff to compel the compliance or forbearance of some act.

136. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

137. Defendants intended to inflict substantial harm upon plaintiff.

138. Defendants acted to achieve a collateral purpose, beyond or in addition to plaintiff's criminal prosecution.

139. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

140. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

141. The above paragraphs are here incorporated by reference as though fully set forth.

142. Defendants arrested, detained and caused a criminal prosecution to be initiated against plaintiff to compel the compliance or forbearance of some act.

143. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against plaintiff, especially with the absence of any cognizable probable cause.

144. Defendants intended to inflict substantial harm upon plaintiff.

145. Defendants acted to achieve a collateral purpose, beyond or in addition to plaintiff's criminal prosecution.

146. Defendants' actions therefore resulted in deprivations to plaintiff's rights, pursuant to the Fourth and Fourteenth Amendments.

147. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Denial of Right to Due Process Under
New York State Law

148. The above paragraphs are here incorporated by reference as though fully set forth herein.

149. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.

150. Defendants forwarded said false information to prosecutors.

151. Defendants' actions resulted in post-arraignment deprivation to plaintiff's liberty and freedom of movement.

152. Accordingly, defendants violated plaintiff's right to a fair trial, pursuant to Article I, Sections 1, 2 and 6, of the constitution of the State of New York, and Article II, Section 12, of the New York State Civil Rights Law.

153. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

154. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Denial of Rights to Fair Trial & Due Process Under
42 U.S.C. § 1983 Against Individual Defendants

155. The above paragraphs are here incorporated by reference as though fully set forth.
156. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.
157. Defendants forwarded said false information to prosecutors.
158. Defendants' actions resulted in post-arraignment deprivations to plaintiff's liberty and freedom of movement.
159. Accordingly, defendants violated Plaintiff's rights, pursuant to the Fourth and Fourteenth Amendments to Constitution of the United States.
160. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act under
New York City Law

161. The above paragraphs are here incorporated by reference as though fully set forth herein.
162. Defendants' acts or series of acts constituted a misdemeanor or felony against plaintiff, as defined in state or federal law which presented a serious risk of physical injury to plaintiff, whether or not such acts have actually resulted in criminal charges, prosecution or conviction.
163. Accordingly, defendants committed a crime of violence against plaintiff and violated plaintiff's rights, pursuant to Section 10-403 of the Administrative Code of the City of New York.
164. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

165. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Biased Based Profiling under
New York City Law

166. The above paragraphs are here incorporated by reference as though fully set forth herein.

167. Defendants impermissibly relied upon Plaintiff's actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to suspected unlawful activity.

168. Accordingly, defendants violated plaintiff's rights, pursuant to Section 14-151 of the Administrative Code of the City of New York.

169. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

170. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws under
New York State law

171. The above paragraphs are here incorporated by reference as though fully set forth herein.

172. Plaintiff, as a Hispanic or Latino male, is a member of a racial or ethnic minority and protected class.

173. Defendants impermissibly discriminated against Plaintiff on the basis of his race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

174. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

175. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

176. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

177. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

178. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

179. Accordingly, defendants violated plaintiff's rights, pursuant to Article I, Section 11, of the constitution of the State of New York, Article VII, Section 79-N, of the New York Civil Rights Law and Section 296, paragraph 13, of the New York Executive Law.

180. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

181. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 & 1983 Against Individual Defendants

182. The above paragraphs are here incorporated by reference as though fully set forth herein.

183. Plaintiff, as a Hispanic or Latino male, is a member of a racial minority and protected class.

184. Defendants impermissibly discriminated against Plaintiff on the basis of his race, color or ethnicity.

185. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

186. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

187. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

188. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

189. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

190. Accordingly, defendants violated plaintiff's rights, under the Fourteenth Amendment to the Constitution of the United States.

191. Defendant City, as employer of the individual Defendants, is liable for their violations of the United States Code, Title 42, Section 1981, under the doctrine of *respondeat superior*.

192. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 & 1986 Against Individual Defendants

193. The above paragraphs are here incorporated by reference as though fully set forth herein.

194. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of his liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

195. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

196. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges of citizens of the United States.

197. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of his civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

198. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

199. Accordingly, defendants violated Plaintiff's rights, pursuant to the First, Fourth and Fourteenth Amendments to the Constitution of the United States.

200. Defendant City, as employer of the individual Defendants, is liable for their violations of the United States Code, Title 42, Section 1985, under the doctrine of *respondeat superior*.

201. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Failure to Intervene Under New York State Law

202. The above paragraphs are here incorporated by reference as though fully set forth herein.

203. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

204. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

205. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

206. The above paragraphs are here incorporated by reference as though fully set forth herein.

207. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

208. Accordingly, the Defendants who failed to intervene violated the First, Fourth and Fourteenth Amendments to the Constitution of the United States.

209. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-SECOND CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under
New York State Law

210. The above paragraphs are here incorporated by reference as though fully set forth.

211. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

212. Defendant City breached those duties of care.

213. Defendant City placed defendants in a position where they could inflict foreseeable harm.

214. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

215. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

216. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-THIRD CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

217. The above paragraphs are here incorporated by reference as though fully set forth.

218. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

219. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

220. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to a deliberate indifference toward the rights of those who may come into contact with defendant City’s employees.

221. Defendant City’s employees engaged in such egregious and flagrant violations of plaintiff’s Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City’s employees.

222. Defendant City’s repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

223. Defendant City's conduct caused the violation of plaintiff's civil rights, pursuant to Constitution of the United States.

224. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - u) On the Twenty-First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - v) On the Twenty-Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - w) On the Twenty-Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - x) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
 - y) Awarding Plaintiff reasonable attorney's fees and costs, pursuant to 42 U.S.C. § 1988, the New York Civil Rights and Executive Laws, and the applicable sections of the Administrative Code of the City of New York;
- Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: Bayside, New York
March 23, 2021

SIM & DEPAOLA, LLP

Attorneys for Mr. Panton Avila

4240 Bell Blvd – Ste 201

Bayside, NY 11361

T: (718) 281-0400

F: (718) 631-270

/s/ Samuel C. DePaola

By: Samuel C. DePaola, Esq.

ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am a partner with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. This verification is made by me and not by Plaintiff, because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
March 23, 2021

/s/ Samuel C. DePaola

SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

PANTON AVILA,

Plaintiff,

-against-

CITY OF NEW YORK, SIMON RASHID TONIANN GROTH, FREDERICK MANNEY and
JOHN or JANE DOE 1-10,

Defendants.

SUMMONS & VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.
42-40 Bell Boulevard
Suite 201
Bayside, New York 11361
Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for